

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

PELTON INTERACTIVE, INC., *Complainant*

v.

FLEXPORT INTERNATIONAL LLC, *Respondent*.

DOCKET NO. 24-19

Served: April 22, 2025

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER ON COMPLAINANT’S THIRD MOTION TO EXTEND SCHEDULE

On February 5, 2025, Complainant Peloton Interactive, Inc., filed a Second Motion for Extension of the Scheduling Order, seeking to extend discovery due to the large volume of documents exchanged and the need for time to review them prior to taking depositions. Respondent Flexport International LLC filed a response to the motion to extend, consenting to the request for an extension of time but denying other issues raised in Peloton’s motion. A Second Amended Scheduling Order issued on February 19, 2025.

On April 2, 2025, Peloton filed a Third Motion for Extension of the Scheduling Order (“3rd MTE”), seeking a nearly three-month extension of the schedule. As good cause for an extension, Peloton asserts that it expected a substantial number of documents to be provided by Flexport on or about April 4, 2025, pursuant to the Memorandum Order on Motion for Protective Order, Cease and Desist Remedy, and Motions to Compel (“Memorandum Order”) issued by the undersigned on March 26, 2025.

On April 9, 2025, Flexport responded to the 3rd MTE. Flexport reiterates its position that the amended complaint should be dismissed as “Peloton’s claims and this entire litigation were created and manipulated” by counsel, Peloton has failed to respond to Flexport’s interrogatories, and Peloton has withheld an audit on the basis of attorney-client privilege that should have been provided as it is not privileged. Opposition at 1-11. Flexport attached excerpts of several depositions as exhibits. Flexport’s response raises new issues that should be addressed in a separate motion or briefing after close of discovery, not raised and argued for the first time in a response to a motion to extend the schedule. Peloton stated by email to the Secretary that the exhibits may be subject to confidentiality, but it did not file a motion for confidential treatment.

Because the issue raised in the motion to extend the schedule—that there would be a substantial number of documents provided by Flexport to supplement those already produced—is speculation by Peloton and was not addressed in any respect by Flexport, the undersigned cannot determine whether there is good cause to extend the schedule. Accordingly, the 3rd motion to extend the schedule is **DENIED WITHOUT PREJUDICE**.

For future motions, Peloton is referred to the Initial Order regarding confidentiality:

Use in the proceeding – If confidential information is filed in a memorandum or as an exhibit to a dispositive motion or as part of briefing on the merits, it must be accompanied by a motion justifying confidential treatment. This motion must identify each item for which protection is sought and show good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information. 46 C.F.R. § 502.141(j)(1). The burden is on the party seeking to protect the information to show good cause for its protection.

Initial Order at 5. An email to the Secretary is not sufficient to request action should Peloton wish to request confidential treatment. *Id.* at 4; *also see* Memorandum Order at 2.

Peloton is advised that it is unlikely to receive a lengthy extension of time such as those requested in its last two motions to extend the schedule, particularly if Flexport has already provided the supplemental discovery.

If it has not yet done so, Flexport is **ORDERED** by April 25, 2025, to produce the communications between it and various entities regarding the movement of Peloton containers/shipments for which invoices issued beginning in May 2021. Memorandum Order at 1.

The issues raised by Flexport in its opposition to the motion are concerning, however, they do not address the motion before the undersigned to extend the schedule. Flexport is put on notice that future filings that fail to address the content of an opposing party's motion and instead raise new and unrelated issues will be rejected. Moreover, attaching pages of deposition testimony (or any documents) as exhibits without citing to specific pages and lines in briefing, motions, or oppositions is discouraged.

Both parties must comply with the Memorandum Order. Any items specified in the Order and not produced by April 25, 2025, could result in discovery sanctions including adverse inferences, decision on default, or dismissal of the complaint. 46 C.F.R. § 502.150(b); *Atlantic Richfield Co. v. U.S. Dept. of Energy*, 769 F.2d 771 (DC Cir. 1984) (agency can impose sanctions, including drawing adverse inferences against persons not complying with discovery orders); *Kawasaki Kisen Kaisha, Ltd v. The Port Authority of New York and New Jersey*, Docket No. 11-12, 2014 WL 7328475, at *13-15 (FMC Nov. 20, 2014) (Order Affirming Dismissal of Complaint for complainant's willful failure to provide discovery); *MSC Industries, Inc., v. Mediterranean Shipping Company S.A.*, 2024 WL 95383, at *14 (FMC Jan. 3, 2024) (Order Partially Affirming Initial Decision on Default and Remanding for Further Proceedings) ("...the ALJ's decision to impose default as a discovery sanction was within her discretion...").



Linda S. Harris Crovella
Administrative Law Judge